

MANILA LAW COLLEGE
Statutory Construction (2 units)

I. Background of the Study of Statutory Construction

- A. Statutes
- B. Statutory construction
- C. Situs of construction
- D. Purpose of construction
- E. When to construe?
- F. Ambiguity/Vagueness
- G. Statutory construction v. judicial legislation
- H. Legis interpretado legis vim obtinet
- I. Kinds of construction
 - a. Strict v. liberal
 - b. Prospective v. retrospective
- J. Extent of the power to construe

Cases

- Caltex v. Palomar, G.R. No. L-19650, 29 September 1966
- Tañada v. Tuvera, G.R. No. L-63915, 29 December 1986
- Romualdez v. Sandiganbayan, G.R. No. 152259, July 29, 2004 Pesca v. Pesca, G.R. No. 136921, 17 April 2001
- People v. Mapa, G.R. No. L-22301, 30 August 1967
- Endencia v. David, G.R. No. L-6355-56, 31 August 1953
- People v. Corpuz, G.R. No. 180016, 29 April 2014 (Decision, Dissenting Opinion of J. Abad)
- Republic v. Molina, G.R. No. 108763, 13 February 1997
- Public Estates Authority v. Caoibes, Jr., G.R. No. 132426, 19 August 1999
- People v. Atop, G.R. No. 124303, 10 February 1998
- People v. Avecilla, G.R. No. 117033, 15 February 2001
- Eastern Mediterranean Maritime Ltd. V. Surio, G.R. No. 154213, 21 August 2013

II. Prelude to the exercise of the power

- A. Verba legis non est recedendum
- B. Absoluta sententia expositore non indigent
- C. Dura lex Sed Lex

Cases

- Tawang Multi-Purpose Cooperative v. La Trinidad Water District, G.R. No. 166471, March 22, 2011
- Nippon Express (Philippines) Corporation v. Commissioner of Internal Revenue, G.R. No. 196907, March 13, 2013
- Bolos v. Bolos, G.R. No. 186400, October 20, 2010
- Gan v. Reyes, G.R. No. 145527, May 28, 2002
- People v. Acbangin, G.R. No. 117216, August 9, 2000
- People v. Veneracion, G.R. No. 119987-88, October 12, 1995
- Pascual v. Pascual-Bautista, G.R. No. 84240, March 25, 1992
- Duncan v. Court of First Instance, G.R. No. L-30576, February 10, 1976
- Alonzo v. Intermediate Appellate Court, G.R. No. 72873, May 28, 1987
- Victoria v. Commission on Elections, G.R. No. 109005, January 10, 1994

III. Basic Guidelines in the Construction and Interpretation of Laws

A. General Guidelines

- a. Intention of the Statute must prevail
- b. Legislative Intent is determined principally from the language of the statute.
- c. *Verba intentioni, non e contra, debent inservire*
- d. The Statute must be capable of interpretation, otherwise, it is inoperative.
- e. In interpreting a statute, it must be interpreted to accomplish a purpose
- f. *Nemo tenetur ad impossibile*
- g. Construction to avoid absurdity and injustice
- h. Consideration of the statute as a whole
- i. Give effect to every word or sentence of a statute

Cases

- Philippine Healthcare Providers Inc., v. Commissioner of Internal Revenue – GR No. 167330, September 18, 2009
- Ramirez v. Court of Appeals – GR No. 93833, September 25, 1995
- Torres v. Limjap – GR No. 34385-86, September 21, 1931
- Llorin, Jr., v. Court of Appeals – GR No. 103592, February 4, 1993
- Municipality of Nueva Era, Ilocos Norte v. Municipality of Marcos, Ilocos Norte – GR No. 169435, February 27, 2008
- Club Filipino, Inc., v. Bautista – GR No. 168406, July 13, 2009
- Yu v. Samson-Tatad – GR No. 170979, February 9, 2011
- Eugenio v. Drilon, G.R. No. 109404, 22 January 1996
- Alonzo v. Intermediate Appellate Court, G.R. No. 72873, 28 May 1987
- Melchor v. Commission on Audit, G.R. No. 95398, 16 August 1991
- People v. Garcia, G.R. No. L-2873, 28 February 1950

B. Considerations within the Statute

- a. *Ubi Lex Non Distinguit Nec Nos Distinguere Debemos*
- b. *Ejusdem Generis Rule*
- c. *Noscitur a sociis Rule*
- d. Doctrine of Necessary Implication
- e. *Expressio unius est exclusio alterius* (Doctrine of Negative Implication)
- f. *Reddendo singula singulis*
- g. *Casus omissus pro omisso habendus est*
- h. Meaning not reflected in the language of the Statute should not be considered

Cases

- People of the Philippines v. The Honorable Sandiganbayan – GR Nos. 1447706- 07, February 16, 2005
- Pelizloy Realty Corporation v. The Province of Benguet – GR No. 183137, April 10, 2013
- Coca-Cola Bottlers, Phils., Inc., v. Gomez – GR No. 154491, November 14, 2008
- Atienza v. Villarosa – GR No. 161081, May 10, 2005
- Commission on Human Rights Employees' Association v. Commission on Human Rights GR No. 155336, November 25, 2004
- Sterling Selections Corporation v. Laguna Lake Development Authority – GR No. 171427, March 30, 2011

- Commission on Audit of the Province of Cebu v. Province of Cebu – GR No. 141386, November 29, 2001
- People v. Garcia, G.R. No. L-2873, 28 February 1950
- Colgate-Palmolive v. Gimenez, G.R. No. L-14787, 28 January 1961
- Roman Catholic Archbishop of Manila v. Social Security Commission, G.R. No. L-15045, 20 January 1961
- Escribano v. Avila, G.R. No. L-30375, 12 September 1978
- People v. Manantan, G.R. No. 14129, 31 July 1962

C. Considerations outside the Statute

- a. Generalia Specialibus non derogat
- b. Lex posterior derogat priori
- c. Lex specialis derogat legi generalis
- d. Lex posterior generalis non derogat legi priori specialis
- e. Borrowed Statute Rule
- f. Interpretare et concordare leges legibus est optimus interpretandi

Cases

- Philippine Economic Zone Authority v. Green Asia Construction & Development Corporation – GR No. 188866, October 19, 2011
- Tuna Processing, Inc., v. Philippine Kingford, Inc., - GR No. 185582, February 29, 2012
- Magno v. Commission on Elections – GR No. 147904, October 4, 2002
- Remo v. The Honorable Secretary of Foreign Affairs – GR No. 169202, March 5, 2010
- Commissioner of Internal Revenue v. Philippine Airlines, Inc. – GR No. 180066, July 2009
- Republic of the Philippines v. Del Monte Motors, Inc. – GR No. 156956, October 9, 2006

IV. Aids to Construction

A. Intrinsic Aids

- a. Preambles
- b. Title
- c. Punctuations
- d. Capitalizations
- e. Headnotes or epigraphs
- f. Lingual Text

Cases

- People of the Philippines v. Francisco – GR No. 106357, September 3, 1998
- Philippine National Bank v. Office of the President – GR No. 104528, January 18, 1996
- Ebarle v. Sucaldito – GR No. L-33628, December 29, 1987
- Commissioner of Customs v. Relunia – GR No. L-11860, May 29, 1959
- People of the Philippines v. Subido – GR No. L-21734, September 5, 1975
- Florentino v. PNB, G.R. No. L-8782, April 28, 1956
- Mapa v. Arroyo, G.R. No. 78585, July 5, 1989
- In Re: In the matter of the estate of Emil H. Johnson – GR no. L-12767, November 16, 1918
- People of the Philippine Islands v. Yabut – GR No. 39085, September 27, 1933. 58 Phil 499
- Baking v. Director of Prisons – GR No. 30364, July 28, 1969. 28 SCRA 850

B. Extrinsic Aids

- a. Policy of the law
- b. Purpose of the law

- c. Legislative History
- d. Legal environment
- e. Contemporaneous Construction
- f. Dictionaries

Cases

- Metropolitan Manila Development Authority v. Garin – GR No. 130230, April 15, 2005
- Commissioner of Internal Revenue v. SM Prime Holdings, Inc. – GR No. 183505, February 26, 2010
- Laxamana v. Baltazar – GR No. L-5955, September 19, 1952
- Ang v. Court of Appeals – GR No. 182835, April 20, 2010. 618 SCRA 592
- Alvarez v. Guingona, G.R. No. 118303, 31 January 1996
- Boie-Takeda Chemicals v. De La Serna, G.R. No. 92174, 10 December 1993

C. Presumptions

- a. Presumption against unconstitutionality
- b. Presumption against injustice
- c. Presumption against implied repeals
- d. Presumption against ineffectiveness
- e. Presumption against absurdity

Cases

- Alvarez v. Guingona, G.R. No. 118303, 31 January 1996
- NHA v. Reyes, G.R. No. L-49439, 29 June 1983
- Aparri v. CA, G.R. No. L-30057, 31 January 1984
- Republic v. CA, G.R. No. 106763, 9 May 2001
- LAMP v. DBM Secretary, G.R. No. 164987, 24 April 2012
- Alonzo v. Intermediate Appellate Court, G.R. No. 72873, 28 May 1987
- COA v. Province of Cebu, G.R. No. 141386, 29 November 2001
- Remo v. DFA Secretary, G.R. No. 169202, 5 March 2010
- Melchor v. Commission on Audit, G.R. No. 95398, 16 August 1991

V. Interpretation of Words and Phrases

A. General Words and Phrases

- a. Generic words
- b. Words with commercial meaning
- c. Words with technical or legal meaning

B. Specific Words

- a. Disjunctive and conjunctive words: “or” “and”
- b. Mandatory and directory words: “may” “shall”

Cases

- Gatchalian v. Commission on Elections GR No. – L32560-61, October 22, 1970
- Saludaga v. Honorable Sandiganbayan – GR No. 184537, April 23, 2010
- Commissioner of Internal Revenue v. Ariete – GR No. 164152, January 21, 2010
- Office of the Ombudsman v. Andutan, Jr. – GR No. 164679, July 27, 2011
- Enriquez v. Enriquez – GR No. 139303, August 25, 2005
- Diokno v. Rehabilitation Finance Corporation, G.R. No. L-4712, 11 July 1952
- San Carlos Milling v. CIR, G.R. No. 103379, 23 November 1993
- Berces v. Guingona, G.R. No. 112099, 21 February 1995
- Mapa v. Arroyo, G.R. No. 78585, 5 July 1989
- Chang Yung Fa v. Gianzo, G.R. No. L-7885, 25 November 1955
- Victorias Milling Company v. SSC, G.R. No. L-16704, 17 March 1962
- CIR v. Manila Lodge No. 761, G.R. No. L-11176, 29 June 1959

- Mustang Lumber v. CA, G.R. No. 104988, 18 June 1996

- C. General words construed generally
- D. Progressive interpretation
- E. Words with commercial meaning
- F. Words with technical or legal meaning
- G. Meaning of word qualified by purpose of statute
- H. Provisos, exceptions, saving clauses
- I. Statute construed as a whole
- J. Statute construed in relation to others

Cases

- C&C Commercial Corporation v. NAWASA, G.R. No. L-27275, 18 November 1967
- Geotina v. CTA, G.R. No. L-33500, 30 August 1971
- San Miguel Corporation v. Municipal Council of Mandaue, G.R. No. L-30761, 11 July 1973
- Malanyaon v. Lising, G.R. No. L-56028, 30 July 1981
- Krivenko v. Register of Deeds, G.R. No. L-630, 15 November 1947
- Garcia v. COMELEC, G.R. No. 111230, 30 September 1994
- Gelano v. CA, G.R. No. L-39050, 24 February 1981
- People v. Chaves, G.R. No. L-19521, 30 October 1964
- Buenaseda v. Flavie, G.R. No. 106719, 21 September 1993
- Magtajas v. Pryce Properties Corporation, G.R. No. 111097, 20 July 1994
- Pendon v. Daisnes, G.R. No. L-5606, 28 August 1952
- Grospe v. CA, G.R. No. L-11443, 30 September 1959

VI. Construction of Constitution and Specific Kinds of Statutes

- A. Constitutional construction
- B. Statutes strictly construed
- C. Statutes liberally construed

Cases

- Francisco v. House of Representatives, G.R. No. 160261, 10 November 2003
- De Castro v. Judicial and Bar Council, G.R. No. 191002, 20 April 2010
- Chavez v. Judicial and Bar Council, G.R. No. 202242, 17 July 2012
- Sarmiento v. Mison, G.R. No. 79974, 17 December 1987
- Centro Project Manpower Services Corporation v. Naluis, G.R. No. 160123, 17 June 2015
- Centeno v. Pornillos, G.R. No. 113092, 1 September 1994
- Cabrera v. Ng, G.R. No. 201601, 12 March 2014
- Land Bank v. Court of Appeals, G.R. No. 221636
- CIR v. La Tondeña Distillery, G.R. No. 175188, 15 July 2015
- City of Manila v. Chinese Community of Manila, G.R. No. 14355, 31 October 1919
- GSIS v. CA, G.R. No. 128523, 25 September 1998
- Engle v. COMELEC, G.R. No. 215995, 19 January 2016

Course Requirements

Class Participation: 30%

Midterm Exam: 30%

Final Exam: 40%

Atty. Jason P. Raposas

